

EU Cosmetic Regulations - Cosmetic Regulation EC No 1223/2009 (1)

Article 6

Title: Obligations of Distributors

Jurisdiction: International

Category: International

Source Citation: Regulation (EC) No 1223/2009, Article 6, 2009

Plain English Summary:

Distributors must exercise due care and verify key labelling and durability requirements before making cosmetics available on the market. They must not distribute non-compliant products and must take corrective, withdrawal or recall measures where necessary.

The Exact Legal Text:

1. In the context of their activities, when making a cosmetic product available on the market, distributors shall act with due care in relation to applicable requirements.
2. Before making a cosmetic product available on the market distributors shall verify that:

the labelling information provided for in Article 19(1)(a), (e) and (g) and Article 19(3) and (4) is present,

the language requirements provided for in Article 19(5) are fulfilled,

the date of minimum durability specified, where applicable under Article 19(1), has not passed.

3. Where distributors consider or have reason to believe that:

a cosmetic product is not in conformity with the requirements laid down in this Regulation, they shall not make the product available on the market until it has been brought into conformity with the applicable requirements,

a cosmetic product which they have made available on the market is not in conformity with this Regulation, they shall make sure that the corrective measures necessary to bring that product into conformity, withdraw it or recall it, as appropriate, are taken.

Furthermore, where the cosmetic product presents a risk to human health, distributors shall immediately inform the responsible person and the competent national authorities of the Member States in which they made the product available, giving details, in particular, of the non-compliance and of the corrective measures taken.

4. Distributors shall ensure that, while a product is under their responsibility, storage or transport conditions do not jeopardise its compliance with the requirements set out in this Regulation.

5. Distributors shall cooperate with competent authorities, at the request of the latter, on any action to eliminate the risks posed by products which they have made available on the market. In particular, distributors shall, further to a reasoned request from a competent national authority, provide it with all the information and documentation necessary to demonstrate the conformity of the product with the requirements listed under paragraph 2, in a language which can be easily understood by that authority.

Keywords/Triggers:

cosmetic distributor obligations, distributor due diligence, cosmetic labelling verification, cosmetic product recall, cosmetic product withdrawal, storage requirements, transport requirements, distributor compliance

Article 7

Title: Identification Within the Cosmetic Product Supply Chain

Jurisdiction: International

Category: International

Source Citation: Regulation (EC) No 1223/2009, Article 7, 2009

Plain English Summary:

This requires businesses in the cosmetic supply chain to be able to identify who supplied a cosmetic product to them and who they supplied it to. For an Ayurvedic cosmetics startup, this helps maintain traceability of products and batches if a regulatory authority investigates a safety or compliance issue.

The Exact Legal Text:

At the request of a competent authority:

- (a) responsible persons shall identify the distributors to whom they supply the cosmetic product,
- (b) the distributor shall identify the distributor or the responsible person from whom, and the distributors to whom, the cosmetic product was supplied.

This obligation shall apply for a period of three years following the date on which the batch of the cosmetic product was made available to the distributor.

Keywords/Triggers:

cosmetic supply chain, product traceability, distributor identification, responsible person, batch traceability, cosmetic compliance, supply chain records, EU cosmetics

Article 8

Title: Good Manufacturing Practice for Cosmetics

Jurisdiction: International

Category: Standards

Source Citation: Regulation (EC) No 1223/2009, Article 8, 2009

Plain English Summary:

Cosmetic products must be manufactured in accordance with good manufacturing practice (GMP). Compliance with relevant harmonised standards published in the Official Journal creates a presumption that the GMP requirement is satisfied.

The Exact Legal Text:

1. The manufacture of cosmetic products shall comply with good manufacturing practice with a view to ensuring the objectives of Article 1.
2. Compliance with good manufacturing practice shall be presumed where the manufacture is in accordance with the relevant harmonised standards, the references of which have been published in the *Official Journal of the European Union*.

Keywords/Triggers:

cosmetic GMP, good manufacturing practice, cosmetic manufacturing standards, EU cosmetics GMP, harmonised standards, cosmetic production compliance, manufacturing compliance, cosmetic quality standards

Article 10

Title: Cosmetic Product Safety Assessment

Jurisdiction: International

Category: Standards

Source Citation: Regulation (EC) No 1223/2009, Article 10, 2009

Plain English Summary:

Before a cosmetic product is placed on the EU market, the Responsible Person must ensure that a safety assessment is completed and a Cosmetic Product Safety Report is prepared. The assessment must consider intended use, exposure and available evidence, and must be performed by a suitably qualified person.

The Exact Legal Text:

1. In order to demonstrate that a cosmetic product complies with Article 3, the responsible person shall, prior to placing a cosmetic product on the market, ensure that the cosmetic product has undergone a safety assessment on the basis of the relevant information and that a cosmetic product safety report is set up in accordance with Annex I.

The responsible person shall ensure that:

(a) the intended use of the cosmetic product and the anticipated systemic exposure to individual ingredients in a final formulation are taken into account in the safety assessment;

(b) an appropriate weight-of-evidence approach is used in the safety assessment for reviewing data from all existing sources;

(c) the cosmetic product safety report is kept up to date in view of additional relevant information generated subsequent to placing the product on the market.

The first subparagraph shall also apply to cosmetic products that have been notified under Directive 76/768/EEC.

The Commission, in close cooperation with all stakeholders, shall adopt appropriate guidelines to enable undertakings, in particular small and medium-sized enterprises, to comply with the requirements laid down in Annex I. Those guidelines shall be adopted in accordance with the regulatory procedure referred to in Article 32(2).

2. The cosmetic product safety assessment, as set out in Part B of Annex I shall be carried out by a person in possession of a diploma or other evidence of formal qualifications awarded on completion of a university course of theoretical and practical study in pharmacy, toxicology, medicine or a similar discipline, or a course recognised as equivalent by a Member State.
3. Non-clinical safety studies referred to in the safety assessment according to paragraph 1 and carried out after 30 June 1988 for the purpose of assessing the safety of a cosmetic product shall comply with Community legislation on the principles of good laboratory practice, as applicable at the time of performance of the study, or with other international standards recognised as being equivalent by the Commission or the ECHA.

Keywords/Triggers:

cosmetic safety assessment, Cosmetic Product Safety Report, CPSR, cosmetic safety assessor, systemic exposure, weight of evidence, cosmetic safety studies, Annex I

Article 11

Title: Product Information File

Jurisdiction: International

Category: Standards

Source Citation: Regulation (EC) No 1223/2009, Article 11, 2009

Plain English Summary:

The Responsible Person must maintain a Product Information File (PIF) for every cosmetic product placed on the EU market and keep it for ten years after the last batch is placed on the market. The PIF must contain product details, the safety report, manufacturing information, evidence supporting claims where justified, and animal-testing data.

The Exact Legal Text:

1. When a cosmetic product is placed on the market, the responsible person shall keep a product information file for it. The product information file shall be kept for a period of ten

years following the date on which the last batch of the cosmetic product was placed on the market.

2. The product information file shall contain the following information and data which shall be updated as necessary:

(a) a description of the cosmetic product which enables the product information file to be clearly attributed to the cosmetic product;

(b) the cosmetic product safety report referred to in Article 10(1);

(c) a description of the method of manufacturing and a statement on compliance with good manufacturing practice referred to in Article 8;

(d) where justified by the nature or the effect of the cosmetic product, proof of the effect claimed for the cosmetic product;

(e) data on any animal testing performed by the manufacturer, his agents or suppliers, relating to the development or safety assessment of the cosmetic product or its ingredients, including any animal testing performed to meet the legislative or regulatory requirements of third countries.

3. The responsible person shall make the product information file readily accessible in electronic or other format at his address indicated on the label to the competent authority of the Member State in which the file is kept.

The information contained in the product information file shall be available in a language which can be easily understood by the competent authorities of the Member State.

4. The requirements provided in paragraphs 1 to 3 of this Article shall also apply to cosmetic products that have been notified under Directive 76/768/EEC.

Keywords/Triggers:

Product Information File, PIF cosmetics, cosmetic documentation, cosmetic safety report, GMP records, cosmetic claims evidence, animal testing data, PIF retention period

Article 12

Title: Sampling and Analysis of Cosmetic Products

Jurisdiction: International

Category: Standards

Source Citation: Regulation (EC) No 1223/2009, Article 12, 2009

Plain English Summary:

Cosmetic product sampling and analysis must be reliable and reproducible. For an Ayurvedic

cosmetics researcher or manufacturer, testing should therefore use reliable methods, and where applicable, relevant harmonised EU standards.

The Exact Legal Text:

1. Sampling and analysis of cosmetic products shall be performed in a reliable and reproducible manner.
2. In the absence of any applicable Community legislation, reliability and reproducibility shall be presumed if the method used is in accordance with the relevant harmonised standards, the references of which have been published in the *Official Journal of the European Union*.

Keywords/Triggers:

cosmetic testing, product analysis, sampling methods, reliable testing, reproducible analysis, harmonised standards, EU cosmetic testing